

IN THE HIGH COURT OF KARNATAKA

BENGALURU BENCH

WRIT PETITION NO. 4567 OF 2024

Petitioner: Ramesh Kumar

Respondent: State of Karnataka

JUDGMENT

Before the Hon'ble Mr. Justice R. Venkatesh

Date of Judgment: 15th March, 2024

This writ petition has been filed under Article 226 of the Constitution of India seeking a writ of certiorari to quash the impugned order dated 10th January, 2024. Section 123 of the Indian Contract Act, 1872 provides that an agreement without consideration is void, unless it is a contract of gift. Order VII Rule 11 of the Code of Civil Procedure, 1908 empowers the court to reject a plaint where it does not disclose a cause of action.

Article 14 of the Constitution of India guarantees equality before the law and equal protection of the laws within the territory of India. Having considered the submissions of both parties and the materials on record, this Court is of the opinion that the impugned order is illegal, void, and liable to be quashed.

In the result, the writ petition is allowed. The impugned order dated 10th January, 2024 is hereby quashed. The writ petition is allowed with costs. The respondent is directed to pay the costs of the writ petition.

Sd/- Justice R. Venkatesh

Bengaluru, 15th March, 2024

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